

24VECV05545 24VECV05545

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-24

Motion: MOTION TO QUASH SUBPOENA OR, IN THE ALTERNATIVE, FOR PROTECTIVE ORDER

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Case Number: 24VECV05545 Hearing Date: September 24, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

MARTHA

JEANNETTE REYNA,

Plaintiff,

vs.

JESUS TRUJILLO, et al.,

Defendants.

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## CASE

NO: 24VECV05545

[TENTATIVE]

ORDER RE: MOTION TO QUASH SUBPOENA OR, IN THE ALTERNATIVE, FOR PROTECTIVE ORDER

Dept.

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HEARING

DATE: September 24, 2026

TIME: 8:30 A.M.

## COMPLAINT

FILED: November 8, 2024

TRIAL

DATE: March 15, 2027

I.

## BACKGROUND

This is a

personal injury action arising out of the motor vehicle collision that occurred between Plaintiff Martha Jeannette Reyna ("Plaintiff") and Defendants Jesus Trujillo, Maria Trujillo, and Sujei Trujillo (jointly, "Trujillo Defendants").

On November 8, 2024, Plaintiff filed a Complaint against Trujillo Defendants, Defendant PeopleReady, Inc. ("PRI"); Defendant TrueBlue, Inc. ("TBI"); and DOES 1 through 100 (collectively, "Defendants"), alleging causes of action for: (1) Motor Vehicle Negligence and (2) General Negligence.

On December 20,

2024, PRI and TBI filed their joint Answer to the Complaint. On January 7, 2025, Defendant Sujei Trujillo filed an Answer to the Complaint. On February 19, 2025, Defendants Jesus Trujillo and Maria Trujillo filed their joint Answer to the Complaint.

On June 2, 2026,

Plaintiff filed the instant Motion to Quash Subpoena or, in alternative, for Protective Order. On August 21, 2026, Defendant Sujei Trujillo filed an Opposition. On August 27, 2026, Plaintiff filed a Reply.

II.

## LEGAL

## STANDARD

Pursuant to the Code of Civil

Procedure Section 2025.010, any party may obtain discovery (subject to the scope and restrictions provided by law) "by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.) A deposition subpoena is the only means by which discovery may be obtained from a nonparty. (Unzipped Apparel, LLC v. Bader, 2007) 156 Cal.App.4th 123, 127.)

"If a subpoena requires the

attendance of a witness or the production of books, documents, electronically

stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).) “The following persons may make a motion pursuant to subdivision (a): (1) A party . . .” (Code Civ. Proc., § 1987.1, subd. (b)(1).)

III.

### DISCUSSION

#### Meet and Confer

To the extent that

Plaintiff seeks a protective order in the alternative, a motion for a protective order “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.060, subd. (a).) Specifically, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) “[A]ttempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ and ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Plaintiff submitted the declaration of her counsels of record, Anthony Martirosyan and Raffi Bagdasaryan, attesting the following meet and confer efforts: “I was unavailable to participate in the September 10 telephone conference. I asked Raffi Bagdasaryan, an attorney with my firm, to conduct the conference on Plaintiff’s behalf. Anthony Morales, the declarant who signed the declaration supporting the moving papers, is no longer with The Vartazarian Law Firm.” (Martirosyan M&C Decl., ¶4.) “On September 10, 2026, at approximately 2:00

p.m., I participated in a telephone conference with Kelly W. Migoya, counsel for Defendants. Ms. Migoya and I were the participants on the call.” (Baghdasaryan M&C Decl., ¶3.) The telephonic meet and confer lasted fifteen (15) minutes and they parties were unable to informally resolve this matter. (Id., ¶¶4-7.) Accordingly, the Court finds that Plaintiff has fulfilled her meet and confer obligation.

Merits  
of the Motion

Plaintiff moves for an order quashing the deposition subpoena of non-party Natasha Watson (hereinafter, “Ms. Watson”) on the grounds that the subpoena is overbroad, oppressive, unduly burdensome, and seeks confidential information. Specifically, Plaintiff argues that the subpoena seeks to obtain employment/performance testimony and medical impeachment from a non-party County employee. Alternatively, Plaintiff seeks a protective order limiting the examination of Ms. Watson to nonprivileged facts within her personal knowledge and prohibiting inquiry into confidential County/DPSS information and medical causation opinion.

In opposition, Defendant Sujey Trujillo (hereinafter, “Trujillo”) argues that the scope of the deposition subpoena is proper because Plaintiff affirmatively alleges loss of income and traumatic brain injury, thus places her employment history; earning capacity; job performance; and cognitive functioning at issue in this case. (Opp. at 1:25-2:3.) “[A]ny party may obtain discovery regarding any matters, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) Here, Plaintiff does not contest that she alleges loss of income and traumatic brain injury. However, Plaintiff asserts that the examination seeks confidential County employee information from a character witness, thus encroaches upon her right to privacy. (Mot. at 4:2-8, 4:14-21; Morales Decl., ¶¶2-3, 6-7, 9-11, Exs. 1-2, 5-6.)

The right of privacy in the California Constitution (art. I, § 1), “protects the individual's reasonable expectation of privacy against a serious invasion.” (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250

[italics in original]; See Williams v. Superior Court (2017) 3 Cal.5th 531, 552 ["In Hill, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations".].)

Trujillo admits that the deposition subpoena seeks testimony concerning Plaintiff's employment, job performance, attendance, work limitations, and earning capacity. (Opp. at 6:4-6.) To the extent this scope of questioning could involve testimony about Plaintiff's internal employment records and information, which are privileged, Ms. Watson does not have personal knowledge of during her time as Plaintiff's supervisor, and/or requires Ms. Watson to give an expert opinion, the deposition subpoena is overbroad. Notably, Plaintiff's employer has advised Ms. Watson that Plaintiff's employment records are confidential. (Morales Decl., ¶3, Ex. 2.) As such, a protective order limiting the scope of the deposition subpoena examination is warranted. Trujillo concedes that a protective order is the appropriate remedy where some privacy interests exists. (Opp. at 6:7-11.)

Request  
for Discovery Sanctions

"Except as specified in subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Here,  
Plaintiff's counsel of record, Anthony Morales seeks \$4,500.00 in monetary discovery sanctions for approximately 10.0 hours of time spent on meet and confer efforts, proposed stipulations, correspondence, and preparing this present motion at an hourly rate of \$450.00. (Morales Decl., ¶12.) Furthermore,

Trujillo fails to show substantial justification for seeking overbroad employment information via deposition subpoena and/or refusal to modify or limit the scope of the subpoena via stipulation. Thus, the Court will award monetary discovery sanctions as requested.

IV.

#### CONCLUSION

Based on the foregoing, Plaintiff Martha Jeannette Reyna's Motion to Quash Subpoena is DENIED.

Alternatively, Plaintiff Martha Jeannette Reyna's Motion for Protective Order is GRANTED. The deposition of Natasha Watson is limited to examination of nonprivileged matters within her personal knowledge including personally observed changes in Plaintiff's functioning on the job.

Plaintiff Martha Jeannette Reyna's Request for Sanctions is also GRANTED. Defendant Suje Trujillo is ordered to pay \$4,500.00 in monetary discovery sanctions within 30 days of this order.

Plaintiff Martha Jeannette Reyna to give notice.

Dated: September  
24, 2026

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Hon. Karen Moskowitz

Judge  
of the Superior Court